

August 17, 2026
Dept. 9
Probate Tentative Rulings

13.	PP20200225	ESTATE OF ROBERT THARRAT
MOTION HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 24, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 17, 2026.

On June 24, 2026, Public Administrator, Jeff Leikauf, El Dorado County, the Administrator of the Estate of Robert S. Tharratt ("Administrator" or "Mr. Leikauf"), filed a Motion to Vacate Order Appointing El Dorado County Public Administrator Jeff Leikauf as Administrator of the Estate of Robert S. Tharratt. Proof of Service of the Notice of Hearing was filed on July 17, 2026.

Administrator alleges that on January 16, 2026, Petitioner, Hilda Diaz, personally and as representative of the Estate of Joaquin Diaz; Bianca Diaz Huile; and Yadira Menchu ("Petitioner"), filed a Petition for Probate requesting that Mr. Jeff Leikauf be appointed as administrator of the Estate of Robert Steven Tharratt. Administrator was not served or notified of the Petition for Probate. Notice of Petition to Administer Estate was published in The Mountain Democrat which did not name Mr. Leikauf in the publication.

On May 7, 2026, Petitioner filed a Notice of Petition to Administer Estate of Robert Steven Tharratt. The Petition did not identify who was requested to be appointed as personal representative in number 3. Mr. Leikauf was not served or notified of the Petition to Administer Estate. On May 11, 2026, the Court heard the Petitions absent Mr. Leikauf and appointed him as Administrator. Letters of Administration were issued on May 29, 2026, naming Mr. Leikauf as Administrator.

Administrator argues that he was not provided notice before the appointment was entered, nor did he receive the petition seeking appointment, notice of the hearing, and was not otherwise informed the Court would be asked to appoint him as personal representative of the estate. Administrator asserts that had he had been provided notice, he would have advised the Court that it does not appear that there are any assets in the estate to marshal. As there are no probatable assets, there are no funds to pay the fees of the Public Administrator and the attorneys for the Public Administrator. The Public Administrator cannot use public funds to pay for administrative fees and costs of a private estate and/or actions against a private estate and therefore, Public Administrator declines appointment.

Administrator makes the following requests:

1. Vacate the Order Appointing Jeff Leikauf Administrator of the Estate of Robert Steven Tharratt;
2. Revoke any Letters of Administration issued pursuant to that order; and
3. Relieve Jeff Leikauf, Public Administrator of El Dorado County, of any obligations arising from the appointment.

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Probate Code § 7620(c) instructs that the public administrator of the county in which the estate of a decedent may be administered shall promptly accept appointment as personal representative of an estate when so ordered by the court, whether or not on petition of the public administrator, **after notice to the public administrator** as provided in Section 7621. (emphasis added)

Probate Code § 7621 provides, in part (emphasis added):

(a) Except as otherwise provided in this section, appointment of the public administrator as personal representative shall be made, and letters issued, in the same manner and pursuant to the same procedure as for appointment of and issuance of letters to personal representatives generally.

(b) Appointment of the public administrator may be made on the court's own motion, **after notice to the public administrator** as provided in Section 1220.

Pursuant to Probate Code § 1220, notice must be provided at least 15 days before the time set for the hearing.

The Court finds that Mr. Leikauf did not receive proper notice as required. Mr. Leikauf's Motion to Vacate is granted.

TENTATIVE RULING #13:

ABSENT OBJECTION THE MOTION TO VACATE IS GRANTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE